

John Stuart Mill, the utilitarian philosopher, is most notably known for his work on free speech, addressed in his book *On Liberty*, written in 1859. In the second chapter, Mill highlights concepts shared by the people and their governments such as *power* and *expression of opinion*. What Mill is expressing in this chapter is that everyone has a voice – everyone has an opinion, and “to refuse a hearing to an opinion, because they are sure that it is false, is to assume that their certainty is the same thing as absolute certainty.” (19) So, does this mean that every type of opinion is safe to express? What if it’s harmful in some way to someone or some particular group of people? And what if essentially everyone knows that this random opinion is in fact wrong? First, we will look at what the utilitarian says regarding the *expression of opinion*, then we will consider where hate speech should lie, and finally why it would be a “peculiar evil” (19) to silence the expression of the people, for as Mill states, it “is robbing the human race”. (19)

“If all [human]kind minus one were of one opinion and only one person were of the contrary opinion, [human]kind would be no more justified in silencing that one person, than he, if he, had the power, would be justified in silencing [human]kind”. (18) This is definitely something a utilitarian would say as it fits their whole ‘the outcome that is the greatest good is the one that society can benefit from mostly’ mindset, but with consideration of everyone’s view. Let us add to this: let’s say there are 100 people; there are 99 with one (same) opinion, and one person with a completely different opinion. Based on what we just read, the bigger group is no more correct in telling the individual that their opinion is invalid or what may have you, than the individual is, yelling up to the big group that they are all in fact wrong.

So how is hate speech taken into consideration? Is this something that a utilitarian would consider in the midst of what it means to have *free speech*? It seems obvious that Mill isn’t going to say that hate speech, which includes words and phrases that are spoken in a manner with intent

to target and trigger a specific person or group, is in fact protected and fair to spew, but he does seem disgusted by the idea of silencing an opinion – it doesn't matter what the opinion is – it is the act of being able to express, that each individual holds a right to, and that is what Mill, albeit the utilitarian, is attempting to protect.

So why is it considered “evil” (19) by Mill to silence an opinion that most, if not everyone in the immediate surrounding, knows to be false? Wouldn't that be doing a service for the people by not allowing the opinion to be heard, and thus preventing any further attraction to it? Mill would say no. He then talks about how neither the right nor the wrong can benefit from silencing opinions by stating two hypotheses: first, we can never know that the opinion we try to dismiss, or silence, or as Mill would say, “stifle” (19) completely, is in fact a false one; second, even if it is in fact a false opinion, to silence it is still an evil act to commit. If the opinion is right, we may never know. “If wrong”, he says, “they lose what is almost as great a benefit... the clearer perception...of truth, produced by its collision with error”. (19) A simple analogy (or so I hope) is this idea of good and bad. Now we shall not go into what it means to be good and bad, but simply that you need one in order to understand the other. Argue against this, and you will see that it leads to either all good things (opinions, ideas, etc.) or all bad, either way we won't know the difference because we have completely dismissed the other side of the coin – which leads to the more comical example of someone that calls ‘heads’ in the air of coin toss, but as it lands tails up, the individual just flips it back over to show heads.

In a nutshell, it seems that Mill is protecting this idea of what it is to have an opinion as an individual human being. Furthermore, it doesn't matter if the opinion is hurtful or not, well not necessarily, but rather, not being able to express said opinion doesn't help to identify what a bad opinion is. Think about that for a second: one cannot term something ‘bad’ if they do not

allow for anything but what they think to be 'good'; and how do they know what they think is good, is actually good? Mill does a fairly significant job outlining as best as he can the ideals for what it means to have free speech. Because of this we now see how important an opinion can be, no matter if it's right or wrong, that will obviously be decided, but we need to continue to be able to express our opinions, no matter if the majority thinks they are in fact false and attempt to silence them.